FREEDOM-TO-OPERATE AND IP DUE DILIGENCE REPORT

Project Vertex — CBX-417 oncology programme | Privileged & Confidential | 8 August 2025

Addressee: The Board of Directors, Hartwell Pharma Limited

Prepared by: Whitfield Carter LLP (S. Whitfield, J. Osei, T. Gallagher)

1. Scope and instructions

We have been instructed to review the patent portfolio offered for licence by Calbryn Therapeutics Limited (the "Target IP") and to advise on (a) the ownership and validity position; (b) freedom to operate for the lead compound CBX-417; and (c) the principal risks the Board should weigh before entering the proposed licence. This report is based on the data room as at 31 July 2025, public register searches, and discussions with the Target's patent attorneys.

2. Portfolio overview

The Target IP comprises 14 patent families (6 granted, 8 pending) spanning the genus, the CBX-417 composition of matter, polymorphs, formulation, method-of-treatment and manufacturing inventions. The composition-of-matter family (CBX-VTX-002) is granted in all major jurisdictions and runs to 2037, providing the core period of exclusivity. Two improvement families (CBX-VTX-013/014) are to be assigned outright.

3. Ownership and encumbrances

Register searches confirm Calbryn Therapeutics Limited as recorded proprietor of all granted families. We identified one non-exclusive research-use licence to Meridian Diagnostics GmbH over the companion-diagnostic family (CBX-VTX-010), limited to non-commercial assay development; this does not impair the Licensee's commercial rights in the Field but should be specifically disclosed and carved out. No security interests are registered at Companies House against the families.

4. Freedom to operate

Our FTO search identified no granted third-party patent that would be infringed by the manufacture, use or sale of CBX-417 in its current form in the EU, UK or US. We note an April 2024 enquiry from Pemberton Rowe LLP concerning the scope of claim 1 of CBX-VTX-006 (the checkpoint-inhibitor combination); the Target responded and the matter appears dormant, but we recommend a specific indemnity and a reserved right to control any future proceedings on that family.

5. Principal risks and recommendations

(a) Eight families remain pending; granted scope is uncertain, and the Warranties should be qualified accordingly. (b) The Meridian licence and the Pemberton Rowe enquiry should be addressed in the Disclosure Letter with corresponding warranty qualifications and, for the latter, an indemnity. (c) We recommend the Licensee secure step-in rights to prosecute and maintain the pending families if the Target fails to do so. (d) Subject to the above, the Target IP provides a sound basis for the proposed exclusive licence and we see no FTO impediment to proceeding.

This report is provided to the Board of Hartwell Pharma Limited for the purpose of the Project Vertex transaction and is subject to legal professional privilege. It may not be relied upon by any third party.